

26STCV04337 26STCV04337

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-08

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Case Number: 26STCV04337 Hearing Date: July 8, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:16 PM on July 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 7, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff accuses Defendant of
defamation.

Defendant Alexander Cerilo moves for an order to declare Plaintiff a vexatious litigant.

TENTATIVE RULING

Defendant Alexander Cerilo's motion for an order to declare Plaintiff a vexatious litigant is DENIED.

Motion To Declare Vexatious Litigant

Defendant Alexander Cerilo moves for an order to declare Plaintiff a vexatious litigant based on the following lawsuits filed by Plaintiff in propria persona:

1. A

lawsuit docketed 26STCV04337 filed on or about February 10, 2026 alleging defamation and intentional infliction of emotional distress against Defendant.

2. A

lawsuit docketed 25STCV31247 filed on or about on October 27, 2025 alleging breach of fiduciary duty, conversion, intentional infliction of emotional distress, defamation, intentional interference w/association activities, injunctive relief against Defendant and co-directors Dominador Sabado, Sunny Quezon, Angelica Deapera, Caroline Elston, and Guadalupe Limbo.

3. A

lawsuit docketed 25STLC08120 filed on or about October 25, 2025 alleging vandalism, trespass and conversion, injunctive and declaratory relief against Defendant.

4. A

lawsuit docketed 25STLC00853 filed on or about January 14, 2025 alleging declaratory relief, injunctive relief, libel per se, and intentional infliction of emotional distress against Defendant and co-directors Dominador Sabado, Sunny Quezon, Angelica Deapera, Caroline Elston, and Guadalupe Limbo.

5. A

lawsuit docketed BC687273 filed on or about December 18, 2017 alleging fraudulent transfer of title of real property, cancellation of deed of trust, removal of officers and officers, declaratory relief, breach of fiduciary duty against the then officers and officers of FACLA. This frivolous lawsuit was dismissed by the Plaintiff herself.

6. A

lawsuit docketed BC587930 filed on or about July 13, 2015 alleging violation of Unruh Civil Rights Act, interference of exercise of civil rights, fraud by intentional misrepresentation, temporary restraining order, preliminary and permanent injunctive relief against the then officers and directors of FACLA. This frivolous lawsuit was dismissed by the Plaintiff herself.

For purposes of the vexatious litigant statute, the following terms have the following meanings:

(a) "Litigation"

means any civil action or proceeding, commenced, maintained or pending in any state or federal court.

(b) "Vexatious litigant" means

a person who does any of the following:

(1) In

the immediately preceding seven-year period has commenced, prosecuted, or maintained in propria persona at least five litigations other than in a small claims court that have been (i) finally determined adversely to the person or (ii) unjustifiably permitted to remain pending at least two years without having been brought to trial or hearing.

(2) After

a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.

(3) In

any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

...

(c) "Security"

means an undertaking to assure payment, to the party for whose benefit the undertaking is required to be furnished, of the party's reasonable expenses, including attorney's fees and not limited to taxable costs, incurred in or in connection with a litigation instituted, caused to be instituted, or maintained or caused to be maintained by a vexatious litigant.

(d) "Plaintiff"

means the person who commences, institutes or maintains a litigation or causes it to be commenced, instituted or maintained, including an attorney at law acting in propria persona.

(e) "Defendant"

means a person (including corporation, association, partnership and firm or governmental entity) against whom a litigation is brought or maintained or sought to be brought or maintained.

(Civ. Proc. Code, § 391 [bold emphasis and underlining added].)

The Court addresses
each of the lawsuits identified by Defendant:

26STCV04337 – Norma

Salvatera Aurelio v. Alexander Cerilo [the instant case]:

Filed February 10, 2026. This case is still pending in Department 734.

The
Complaint alleges oral and written defamation falsely accusing Plaintiff of being "criminal" and of involvement in unspecified "criminal cases."

Because

this case is pending, it was not finally determined adversely to Plaintiff, nor has it been pending for more than two years. As such, it

is irrelevant to Code Civ. Proc. §

391(b)(1) & (2). Code Civ. Proc. § 391(b)(3) is inapplicable as

Plaintiff has not repeatedly filed unmeritorious motions, pleadings, or other papers nor engaged in tactics that are frivolous or solely intended to cause unnecessary delay in this litigation.

25STCV31247 – Norma

Salvatera Aurelio v. Alexander Cerilo, Dominador Sabado, Sunny Quezon, Angelica Deapera, Caroline Elston and Guadalupe Limbo

Filed October 27, 2025. This case is still pending in Department 735.

The

Complaint alleges that Plaintiff was elected as president of the Filipino American Community of Los Angeles, a corporation, ("FACLA") a nonprofit association. On September 26, 2024, Plaintiff organized and coordinated the association's anniversary celebration and achievement awards event. However, Defendants locked the gates of the event venue of the building property of the FACLA association, denied entry to invited guests and speakers and caused food, decorations and prepared achievement awards to be wasted This allegedly caused Plaintiff to suffer humiliation, embarrassment, and emotional distress in front of community members and colleagues.

Because

this case is pending, it was not finally determined adversely, nor has it been pending for more than two years. As such, it is irrelevant to Code Civ. Proc. §

391(b)(1) & (2). Code Civ. Proc. § 391(b)(3) is inapplicable as

Plaintiff has not repeatedly filed unmeritorious motions, pleadings, or other papers nor engaged in tactics that are frivolous or solely intended to cause unnecessary delay in this litigation.

25STLC08120 – Norma

Salvatera Aurelio v. Alexander Cerilo

Filed October 27, 2025. This case is still pending in Department 25 (Spring Street Courthouse).

The

Complaint alleges that, on January 15, 2015, defendant Alexander Cerilo changed and installed multiple locks and padlocks, including bolts and electrical locks, on all entry and exit gates and doors of the FACLA association premises without authorization. These acts prevented lawful members and guests from entering and using the property, including access to scheduled community and cultural activities. Defendant Alexander Cerilo's conduct constitutes vandalism, malicious mischief, and conversion of property use.

Because

this case is pending, it was not finally determined adversely, nor has it been pending for more than two years. As such, it

is irrelevant to Code Civ. Proc. §

391(b)(1) & (2). Code Civ. Proc. § 391(b)(3) is inapplicable as

Plaintiff has not repeatedly filed unmeritorious motions, pleadings, or other papers nor engaged in tactics that are frivolous or solely intended to cause unnecessary delay in this litigation.

25STVC00853[1]-

Norma Salvatera Aurelio v. Alexander Cerilo, Dominador Sabado, Sunny Quezon,
Caroline Elston, Angelica Deapera and Guadalupe Limbo

Filed

January 14, 2025. This case is still pending in Department 412.

The

Complaint alleges that on September 16, 2024, a minority faction of the Board consisting of Defendants signed a document called Declaration of Removal of the Self-Appointed President of FACLA, i.e., Plaintiff. This document falsely accused Plaintiff that she appointed herself contrary to the lawfully held election of FACLA on May 30, 2024. On or about September 28, 2024 Defendants barricaded themselves in the offices of FACLA and prevented Plaintiff from entering the premises. Defendants threatened harassed and yelled at Plaintiff falsely stating Plaintiff was lawfully removed by the FACLA Board and that Plaintiff was self-appointed as President. Defendants further physically dragged a member of FACLA from the premises. On October 16, 2024, an unspecified Defendant posted on the bulletin board of FACLA's lobby falsely accusing that Plaintiff was self-appointed President of FACLA and involved in vandalism. On October 17, 2024 Defendants held a meeting considering the purported removal of Plaintiff as President, without due process as required by FACLA's bylaws, without proper due process. Between October 2024 and January 2025, Defendants further engaged in defamatory acts and accused Plaintiff of being a criminal and a terrorist.

Because

this case is pending, it was not finally determined adversely, nor has it been pending for more than two years. As such, it is irrelevant to Code Civ. Proc. §

391(b)(1) & (2). Code Civ. Proc. § 391(b)(3) is inapplicable as

Plaintiff has not repeatedly filed unmeritorious motions, pleadings, or other papers nor engaged in tactics that are frivolous or solely intended to cause unnecessary delay in this litigation.

BC687273 - Norma Salvatera

Aurelio, Adolpino Aguayon, Perfecto Tobias, Ner Azaula v. Austin Baul, Arturo

Garcia, "Fender" Santos, Claria Julian, Rosalina Nery, Fernandico Q. Gonong, Jr., Judith Ann Vidor, Trustee of the Vidor Family Trust dated September 18, 1989, Judith Vidor, Ticor Title Company of California, North Orange County Escrow Corporation

Filed December 18, 2017. Plaintiff

dismissed case without prejudice on December 6, 2018. A voluntary dismissal without prejudice is a final adverse determination for purposes of a vexatious litigant determination. (Tokerud v. Capitolbank Sacramento (1995) 38 Cal.App.4th 775, 778-80.)

The

Complaint alleged that Defendants engaged in a fraudulent transfer of real property belonging to the FACLA, and seeks to cancel that conveyance. The Complaint also sought the removal of Defendants as directors and officers of FACLA.

This

is only one of two litigation matters (see below re: BC587930) which have been "finally determined adversely" against Plaintiff within the past seven years, and thus the five litigation threshold is not met. (Code Civ. Proc. § 391(b)(1).)

Moreover,

this lawsuit was not brought against moving Defendant Alexander Cerilo, and involves a separate dispute. It is thus not relevant to Code Civ. Proc. § 391(b)(2). Further, moving Defendant does not demonstrate that Plaintiff repeatedly filed unmeritorious motions, pleadings, or other papers nor engaged in tactics that are frivolous or solely intended to cause unnecessary delay in this litigation for purposes of Code Civ. Proc. § 391(b)(3).

BC587930 – Norma Salvatera

Aurelio v. The Filipino-American Community of Los Angeles, Austin G. Baul, Bienvenido L. Basilio, Arturo Garcia, Bernia Ganaon-Targa, Clarita Julian, Aleli Abrigo Neal, Apolonio Julian, Concordia Dos Pueblos, Veronico Agatep, Marcos Caratao, Jerome Esquerra, Manocito "Fender" Santos, Leticia Reyes, Rosalinda Nery

Filed

July 13, 2025. On November 17 2017 the Plaintiff voluntarily dismissed this case without prejudice. A voluntary dismissal without prejudice is a final adverse determination for purposes of a vexatious litigant determination. (Tokerud, supra, 38 Cal.App.4th at 778-80.)

The
Complaint alleged religious and sexual orientation discrimination in the membership admission requirements.

This
is only one of two litigation matters (see above re: BC687273) which have been “finally determined adversely” against Plaintiff within the past seven years, and thus the five litigation threshold is not met. (Code Civ. Proc. § 391(b)(1).)

Moreover,
this lawsuit was not brought against moving Defendant Alexander Cerilo, and involves a separate dispute. It is thus not relevant to Code Civ. Proc. § 391(b)(2). Further, moving Defendant does not demonstrate that Plaintiff repeatedly filed unmeritorious motions, pleadings, or other papers nor engaged in tactics that are frivolous or solely intended to cause unnecessary delay in this litigation for purposes of Code Civ. Proc. § 391(b)(3).

For
the foregoing reasons, Defendant has not demonstrated that Plaintiff should be declared a vexatious litigant pursuant to Code Civ. Proc. § 391 et seq. As such, the motion is DENIED.

[1] Defendant incorrectly identified this case number as 25STLC00853.